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7. Confidentiality Each Party may have access to certain non-public information of the other Party, in any form or media, including without limitation trade secrets and other information related to the products, software, technology, data, know-how, or business of the other Party, and any other information that a reasonable person should have reason to believe is proprietary, confidential, or competitively sensitive (the "Confidential Information"). Each Party shall take reasonable measures, at

least as protective as those taken to protect its confidential information, but in no event less than reasonable care, to protect the other Party's Confidential Information from disclosure to a third party. The receiving party's obligations under this Section, with respect to any Confidential Information of the disclosing party, shall not apply to and/or shall terminate if such information: (a) was already lawfully known to the receiving party at the time of disclosure by the disclosing party; (b) was disclosed to the receiving party by a third party who had the right to make such disclosure without any confidentiality restrictions; (c) is, or through no fault of the receiving party has become, generally available to the public; or (d) was independently developed by the receiving party without access to, or use of, the disclosing party's Confidential Information. Neither Party shall use or disclose the Confidential Information of the other Party except for the performance of its obligations under this Agreement ("Permitted Use"). The receiving party shall only permit access to the disclosing party's Confidential Information to its respective employees, consultants, affiliates, agents, and subcontractors needing to know such information in connection with the Permitted Use, who either (i) have signed a non-disclosure agreement with the receiving party containing terms at least as restrictive as those contained herein or (ii) are otherwise bound by a duty of confidentiality to the receiving party at least as restrictive as the terms set forth herein. The receiving party will be allowed to disclose Confidential Information to the extent that such disclosure is required by law or by the order of a court of similar judicial or administrative body, provided that it notifies the disclosing Party of such required disclosure to enable disclosing party to seek a protective order or otherwise prevent or restrict such disclosure. All rights, titles, and interests in and to Confidential Information shall remain the sole and exclusive property of the disclosing Party.

8. Term and Termination This Agreement shall commence on the Effective Date and remain in force until the expiration of the Trial Period unless earlier terminated as set forth herein. Licensee's unauthorized use of the Software or failure to comply with the terms of this Agreement shall result in automatic immediate termination of this Agreement upon notice by the Company. This Agreement may be terminated by the Company at any time during the Trial Period by providing Licensee of a two (2) days' prior written notice thereof. If the Licensee is not satisfied with the Software, the Licensee may stop using the Software immediately. Upon expiration or termination, (a) each Party shall promptly return or destroy all Confidential Information received from the other Party and all copies thereof, (b) the Licensee shall: (i) immediately cease access to and use of the Software; (ii) uninstall and destroy the Software and all copies thereof, as well as its related documentation, in Licensee or any of its Permitted Users' possession; and (iii) erase any and all of Company Confidential Information then in its possession. The following provisions shall survive the expiration or termination of this Agreement: 3 (Title and Ownership), 6 (No Warranty and Limitation of Liability), 7 (Confidentiality), 8 (Term and Termination) and 9 (Miscellaneous). Terminating this Agreement shall not limit the Company from pursuing any other remedies available under applicable law.

9. Miscellaneous This Agreement shall be governed by and construed under the laws of California, U.S.A., without reference to principles and laws relating to the conflict of laws. The competent courts of the county of Santa Clara in the state of California, U.S.A shall have the exclusive jurisdiction with respect to any dispute and action arising under or in relation to this Agreement. The United Nations Convention on Contracts for the International Sale of Goods shall not apply to this Agreement and is expressly disclaimed. Licensee shall not assign this Agreement without the Company's prior written consent. Any prohibited assignment shall be null and void. No waiver of rights arising under this Agreement shall be effective unless in writing and signed by the Party against whom such waiver is sought to be enforced. No failure or delay by either Party in exercising any right, power, or remedy under this Agreement shall operate as a waiver of any such right, power, or remedy and/or prejudice any rights of such Party. This Agreement does not, and shall not be construed to create any relationship, partnership, joint venture, employer-employee, agency, or franchisor-franchisee relationship between the Parties. Nothing in this Agreement shall be construed to limit or delay either Company or Licensee's ability to seek immediate relief at law or in equity for any breach by the other. This Agreement constitutes the complete and entire agreement of the Parties and supersedes all

previous communications between them, oral or written, relating to the subject matter hereof. Company will not be liable for any delay or failure to provide the services resulting from circumstances or causes beyond the reasonable control of the Company including, but not limited to on account of strikes, shortages, riots, insurrection, fires, flood, storms, explosions, acts of God, war, government or quasi-governmental authorities actions, acts of terrorism, earthquakes, power outages, pandemic or epidemic (or similar regional health crisis), or any other cause that is beyond the reasonable control of the Company.